

Amendment No. 1 to HB2043

Lafferty
Signature of Sponsor

AMEND Senate Bill No. 2132

House Bill No. 2043*

by deleting all language after the enacting clause and substituting:

SECTION 1.

(a) All permanent rules filed in the office of secretary of state on or after January 1, 2025, that are in effect on the effective date of this act, and that are scheduled for expiration under Tennessee Code Annotated, Section 4-5-226, on June 30, 2026, do not expire on June 30, 2026, but remain in effect until repealed or amended by subsequent rule of the appropriate rulemaking agency or until otherwise superseded by legislative enactment.

(b) This section is not to be construed to justify the continued effectiveness of any rule that remains in effect under subsection (a) if the rule conflicts with the provisions of any legislative enactment other than the Uniform Administrative Procedures Act, compiled in Tennessee Code Annotated, Title 4, Chapter 5.

(c) Notwithstanding subsection (a) or title 4, chapter 5, part 2, the following rules expire on the effective date of this act:

(1) Tennessee Public Charter School Commission Rule Number 1185-01-04-.01, relative to submission of an initial replication application, as filed in the office of secretary of state on November 26, 2025;

(2) Tennessee Public Charter School Commission Rule Number 1185-01-04-.02, relative to review of an initial replication application, as filed in the office of secretary of state on November 26, 2025; and

(3) Tennessee Public Charter School Commission Rule Number 1185-01-04-.03, relative to submission and review of an amended replication application, as filed in the office of secretary of state on November 26, 2025.

SECTION 2. If any provision of this act or the application of any provision of this act to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.